CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
July 28, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:04 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised of the request to amend the agenda to include the following resolutions under agenda item 13 (new items):

13-1: A RESOLUTION OF THE CITY COMMISION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ACCEPT LAWRENCE WRIGHT & PARTNERS, LLC FOR THE CONSTRUCTION MANAGEMENT SERVICES FOR SHERBONDY VILLAGE COMMUNITY CENTER, AND TO FURTHER AUTHORIZE THE CITY MANAGER TO NEGOTIATE A PRICE AND A CONTRACT ACCEPTABLE TO THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 13-1 (new items).

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

13-2: A RESOLUTION OF THE CITY OF OPA-LOCKA, OF MIAMI-DADE COUNTY, FLORIDA, SETTING THE PROPOSED MILLAGE RATE OF 9.1052 OF AD VALOREM TAXES FOR THE CITY OF OPA-LOCKA, FLORIDA, FOR THE BUDGET FOR FISCAL YEAR 2010-2011; ESTABLISHING THE DATE, TIME AND PLACE FOR THE FIRST AND FINAL PUBLIC HEARINGS TO CONSIDER THE PROPOSED MILLAGE RATE AND TENTATIVE BUDGET FOR FISCAL YEAR 2010-2011; AND DIRECTING THE CITY MANAGER TO FORWARD A COPY OF THIS RESOLUTION TO THE MIAMI-DADE COUNTY PROPERTY APPRAISER BEFORE DUE DATE OF AUGUST 4, 2010; PROVIDING FOR INCOROPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 13-2 (new items).

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Attorney Geller informed the City Commission that they were provided with a substitute resolution for agenda item 16-1 because of an error in the body of the resolution. The first WHEREAS in the resolution was corrected to read as follows: The City Manager desires to fill the vacant position of Assistance to the City Manager.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda items 16-7, 16-8, 16-10; Commissioner Tydus pulled agenda item 16-2; Commissioner Holmes pulled agenda item 16-1; and Vice Mayor Taylor pulled agenda items 16-3 and 16-9.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Winnie Tang, US Census Bureau presented City Clerk Deborah S. Irby with a plaque for her hard work with the census return rate.

She further thanked the City Commission for their leadership in helping the US Census.

Mayor Kelley thanked the City Clerk's Office for their hard work with the census return rate.

Clerk Irby thanked the citizens for their participation during the census.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 07/14/2010

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of July 14, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for County Commissioner Barbara Jordan (District 1) came forward and mentioned that he spoke to Mayor Kelley regarding mosquito control. He said whenever there's a mosquito problem all they will need is the address and someone from Miami-Dade County will spray the areas.

Commissioner Johnson asked for the status on the buses for the Senior Citizens.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

11. PUBLIC PRESENTATION:

1. Joseph Jean-Baptiste
South Florida Water Management District
re: Hurricane Season Presentation

Joseph Jean-Baptiste of the South Florida Water Management District came forward and informed the commission that we are now entering the 2010 raining season with above average rain fall and elevated water level in Lake Okeechobee. They measure most of the water level through Lake Okeechobee and it engages them on the quantity of water in South Florida.

He further mentioned that flood control is a shared responsibility; the regional water management system is linked in the secondary community systems operated and maintained at the local level. Some of the City of Opa-locka canals are secondary of which the city staff will take care of.

He continued by saying the South Florida Water Management District also provide flood control, water supply, and navigation protection of the eco system. It was a projection that there will be 2 Million people living in South Florida by now, but there's 7.5 Million people living in South Florida and using a system that was built for 2 Million people.

Mr. Jean-Baptiste said they are currently servicing 2,669 miles of canals and levies; they have close to 160 major drainage basis; 1,290 water control structures; 64 pump stations, and 9 regional stations and headquarters.

2. Terence Pinder
re: Welfare of the City

Terence Pinder of 941 Ali-Baba Avenue, Opa-locka, Florida, appeared before the City Commission and said in February he asked the commission to direct the City Manager to schedule workshops throughout the community regarding summer employment. He said he is sad to see that only 20 of Opa-locka residents were employed by the workforce. He addressed other concerns regarding PTP dollars and infrastructure.

3. John Riley
re: Welfare of the City

John Riley of 2963 NW 135TH Street, Opa-locka, Florida, appeared before the City Commission and said this is his third time informing them of the Personnel Board duties. In accordance with the charter they have the responsibility of holding appeals from employees of the city, investigate abuse of the rules, and reach findings.

He further said the charter says the board's findings are conclusive; and some people may believe there only findings of facts, but that's not what the Supreme Court Appealed. There have been employees found not guilty and ordered back to work, some employees have been out from work for a year and others more than two years.

Mr. Riley said the commission or the administration can not change the charter; it has to be changed by the voters. The City Manager has the authority to do certain things but he is governed by the charter.

He asked the City Commission to direct the City Manager to follow the charter and if not then he will take the options that is open to him as a citizen of the City of Opa-locka. If staff can be held accountable for their actions then the City Commission and City Manager should be held accountable as well.

4. Steven Barrett
re: Welfare of the City

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and said there's been discussion to add to the agenda to spend the money for Sherbondy Park and he know there is a urgency to get the project done, but he would like for the commission to schedule a meeting with the citizens so they can be informed of what's going to take place at Sherbondy Park.

He further said if the commission decides to increase the millage rate then the citizens need to know what type of services they will receive if the millage rate is increased.

He thanked Mayor Kelley for calling Miami-Dade County regarding the mosquito control.

Mr. Barrett said he doesn't want to see any staff laid off, but the commission number one priority is to the taxpayers of the community.

Commissioner Holmes said he does not recall receiving information Mr. Riley made reference to regarding employees that went before the Personnel Board. He requested that Mr. Riley provide him with a copy of the documents he made reference to.

Mr. Riley said he provided a copy of the Personnel Board approved minutes and back up documents to the City Clerk.

He further said the Personnel Board has Rules and Procedures in accordance with the Code that tells the board they have a hearing procedure which allows for additional review after the hearing if there are any problems.

Mr. Riley said when he appeared before the City Commission in March asking for a Board of Inquiry those orders and everything concerning the employees were available in the package to support the Board orders and they never received a response.

Mayor Kelley said to the City Manager that Mr. Riley has appeared before the City Commission on several occasions and they need some closure. In addition, he would like to see the City Manager's final report on the findings whether he agree or disagree and the City Commission will make the final decisions.

I too agree with Mayor Kelley, said Commissioner Johnson.

Commissioner Johnson said she previously directed the City Attorney to meet with Mr. Riley, what was the outcome of their meeting?

Attorney Geller said there is an area of disagreement as to how far the board authority extends. In his opinion the board makes a final recommendation, it is a hearing board and its findings may be considered conclusion under the charter, but the ultimate hiring and firing decisions still rests with the City Manager. The board is only an advisory and that is in the charter. He also mentioned there are provisions of the charter that conflicts with each other. He feels that the solution of having the City Manager issue a final order is what he recommends.

Commissioner Johnson said she expect to have an answer at the September 8TH Commission Meeting.

Vice Mayor Taylor asked Mr. Riley after an employee appears before the Personnel Board the decision of the Personnel Board is conclusive?

Mr. Riley said that is correct.

Vice Mayor Taylor asked Attorney Geller, are you saying that the decision of the Personnel Board is not conclusive, they are only advisory and the City Manager has the final decision.

Attorney Geller replied, yes.

He further said the Personnel Board does have the right to make findings of fact and those findings can not be over turned by the City Manager except certain circumstances.

He continued by saying ultimately it is the City Manager's decision, but he must consider what the Personnel Board present to him particularly findings of fact maybe considered presumptively binding acts in special circumstances.

Mr. Riley said Section 28 reads that the City Manager shall have the power to hire and fire, but shall be subject to the Personnel provision of the charter. That means he shall be governed by the Personnel provision of the charter.

11a. CITIZENS' FORUM:

1. Eloy Romos of 13300 NW 42ND, Opa-locka, Florida appeared before the City Commission to voice his concerns regarding the flooding near his business due to drainage that has collapsed and needs to be re-installed in order to ease the drainage issues. He continued by saying, on rainy days his customers can not get out of their cars because of the flooding.

He further said he would like for the City Commission to look into the flooding problems because it's a necessity. In addition, the water flows all the way up to Lejeune Road and it's a hazard.

Mayor Kelley said he had the opportunity to go in the area Mr. Romo is referencing. The city is expecting to receive funding through Bond Re-Financing for infrastructure and that is one of the areas they plan on repairing.

He further said he would like staff to keep Mr. Romo informed of the steps the city is taking to assist him with the flooding. In the short term he would like for staff to make sure the drainage is pumped to prevent flooding.

Commissioner Johnson said to allow temporary relief; can the city pump the drains?

Mayor Kelley said the city is trying to assist them by pumping the drains when the water gets to a high level.

Mr. Romo said there are two French drains that have collapsed and is use less.

Commissioner Johnson said the French drainage is where the water goes through to get out and if it's broken that's something the city can fix.

She further said that staff needs to be customer friendly to make sure the city is providing the best assistance to the businesses as a community partner.

Vice Mayor Taylor said she went to Mr. Romo's business and was unable to get in because his business is at the entrance of 42ND Avenue. She asked, does the Public Works Department have a list of areas they know has flooding issues to make sure they are pumped during the raining seasons?

Manager Patterson said, yes.

Commissioner Holmes said the street on NW 147TH Street has flooding issues and he has been trying to get the drainage fixed in that area for many years.

He further said the city lost a Million dollar business on that street because of the drainage problems.

Vice Mayor Taylor asked, can PTP dollars be used to repair some of the drainage problems in the heavy areas?

Manager Patterson said yes, but the city receives limited PTP dollars and some of the drainage issues are major problems.

Mayor Kelley said over a year ago he asked the formal City Manager and Finance department to look into re-financing the bond to repair the city's infrastructure for drainage because, there are several areas mentioned along with others in the city that are pronged to flooding which requires major dollars. Some of the PTP dollars were utilized to do some touch up work.

He further said he don't know if it's a possibility to partner with businesses in the area to get the job done, and the other option is to continue to known flooding areas.

He continued by saying its not a easy fix to repair the flooding and drainage problems, and that is why he asked staff to look at how the city can get a major source of revenue to deal with only infrastructure and flooding.

2. John Riley of 2963 NW 135TH Street, Opa-locka, Florida appeared before the City Commission and mentioned that the City of Opa-locka charter says that it is the City Manager's decision that the employees are appealing to the board. He would like for the City Attorney to provide the City Commission and him a written opinion to demonstrate where it says in the charter that the City Manager has the final decision. He wants the City Attorney to tell him what the Personnel Rules are and what section 28 reads.

He further mentioned that section 11 prohibits the City Commission from being involved in the hiring and firing process, that's why the Personnel Board was created. The City Manager does not have absolute authority. He said the current City Manager is not qualified to serve as City Manager because section 27 says after your tenure which is 90 days you must be a resident of the City of Opa-locka.

Mr. Riley said the charter says unclassified employees must be a City Manager, Assistant City Manager or Executive Secretary. There's an item on the agenda to approve the hiring of an Assistant to the City Manager as a unclassified employee and that's not what the charter reads.

3. Gail Pivens of Brothers of the Same Mind 4055 NW 17TH Avenue, Miami, Florida passed her time to someone else.

4. Elzie Pivens of Brothers of the Same Mind 4055 NW 17TH Avenue, Miami, Florida passed his time to someone else.

5. (Inaudible) of Brothers of the Same Mind passed his time to someone else.

6. Brian Dennis of Brothers, Executive Director of Brothers of the Same Mind appeared before the City Commission and informed them that he is a resident of the City of Opa-locka.

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and said he is a tax paying citizen of the City of Opa-locka and has been living in this city since 1971. He said he tells everyone that Opa-locka is a small black city that he loves.

He further said he would like for the commission to know that Sharar Avenue needs side walks.

He made reference to agenda item 16.1 and said what is wrong with the management. The City Commission directed the City Manager not to hire anyone and that's what it means. Mr. Brian Finnie hired 16 new people when the commission directed him not to hire anyone.

Mr. Barrett said this city is in trouble when you have a director that does not know where the pumps are in the city.

Gary Johnson of 13118 Alexandria Drive, Apt. 142, Opa-locka, Florida, appeared before the City Commission to thank Vice Mayor Taylor and Terence Pinder for visiting the apartment complex where he lives. He said they had a problem with mosquitos and Vice Mayor Taylor listened to his concerns and within a day someone tested the water and the problem is coming from the junk yards so they are trying to get the issue solved.

Shanetta Pemberton of 13118 Alexandria Drive, Opa-locka, Florida, appeared before the City Commission to thank Vice Mayor Taylor for doing a good job.

Sharon Rosa of 13114 Alexandria Drive, Opa-locka, Florida, appeared before the City Commission to thank Vice Mayor Taylor and Terence Pinder for showing their concerns. She said they have a lot of problems in their apartment complex, however the mosquitos are the worse. She said more of the commissioners should visit them and assist them with the problems in the Gardens Apartments.

(Inaudible) appeared before the City Commission to thank Vice Mayor Taylor for assisting the residents in the Gardens Apartments with the mosquito problems.

Tiffany Smith of 13008 Alexandria Drive, Apt. 118, Opa-locka, Florida, appeared before the City Commission to thank Vice Mayor Taylor for assisting the Tenants at the Gardens Apartments with the mosquitos problems.

Tiffany Smith of 13008 Alexandria Drive, Apt. 118, Opa-locka, Florida, appeared before the City Commission and said thank you for spraying for mosquitos.

Robert Martin of 2561 East Superior Street, Opa-locka, Florida, appeared before the City Commission to inform them that he has standing water in his yard. He has been complaining for 30 years and no one will assist him with the problem.

Commissioner Holmes said he met with Mr. Martin and he also mentioned to him that he received a citation.

He further said the citation was dated July 22, 2010 and payment should be submitted by August 11, 2010. Where is the compliance time for the citizen to come into compliance?

Mayor Kelley directed the City Manager to look into the issue regarding the standing water in Mr. Martin yard.

Mayor Kelley asked, have staff gone to Mr. Martin home to look at the problem?

Manager Patterson replied, no.

Commissioner Holmes said he took a look at the issue and informed Public Works about the problem.

Mayor Kelley said staff should be aware of the problem and he would like for someone to go out to Mr. Martin house.

Robert Martin of 2561 East Superior Street, Opa-locka, Florida, appeared before the City Commission to inform them that he has standing water in his yard. He has been complaining for 30 years and no one will assist him with the problem.

Madam Renneta Holmes, Executive Director of WAVE, appeared before the City Commission to raise awareness. She thanked the City Commission because she had the opportunity to attend the regional violence meeting which involved managers of resident housing and the police department. She voiced her concerns about the female constituents of the city and single head of the household mothers. They have various problems that they are very silent about reporting their issues and sharing their experience as mothers of what's going on with violence.

She further said when a mother is working hard she cant advocate for herself the way she wants to and when there are no grass root organizations then there is no realistic voice. It is very important when you have over 323 deaths of African American Children. She said she created her organization in 1998 in public housing, living on disability. She is concerned that a lot of young kids are being killed.

She asked the City Commission to look into funding for their programs.

Mayor Kelley said he applaud Madam Holmes for her effort over the years.

He asked, have you had the opportunity to speak to someone at the City of Opa-locka Police Department?

Ms. Holmes said she has left messages and documented it so now she's coming directly to the City Commission.

Commissioner Johnson said the city does not have grants to offer to Community Based Organizations, but if she know of any grants that are available then contact the City Manager.

Ms. Holmes said she already has grant funds and she currently provides service to Faithbased Ministries.

12. ACTION ITEMS (items from consent agenda pull list):

16-1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO FILL THE POSITION OF ASSISTANT TO THE CITY MANAGER; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes said he wants the City Manager to have the necessary staff he needs to work with him, but as he stated at the Budget Workshop the Commission passed a resolution not to do anymore hiring at this time.

He said if the city has a Million Dollar deficit, the City Manager does not need to hire anymore staff. He recommends that he work with the staff he currently has until there's a change in the budget.

Commissioner Johnson said at the Budget Workshop the City Manager made reference at the time when the City Commission passed a resolution not to hire any more staff, but he had paper work in the process to hire an employee.

Manager Patterson said the question was asked how many people were hired since the resolution was passed and he said one to his knowledge. He said the process they were following was in the pipeline prior to the adoption of the resolution.

Vice Mayor Taylor asked the City Manager, what happened to the resolution he wanted the commission to adopt to fill the position of Community and Economic Development Director?

Manager Patterson said there was no action on the resolution.

Vice Mayor Taylor asked, is that person still employed with the City of Opa-locka?

Manager Patterson replied, yes.

Vice Mayor Taylor said the commission said there is a freeze on hiring but the City Manager still hired someone. She asked the City Manager, did someone give you any directives?

Manager Patterson said that is the individual that was in the pipeline prior to the adoption of the resolution to freeze hiring.

Vice Mayor Taylor said she does not remember that being in the pipeline. She said she knows how to follow order. The commission put a freeze on hiring and she will repeat that because the City Manager's staff told the commission that everything was stable, and based on that information they put a freeze on hiring so no one will be layed off. At the first budget workshop staff proposed to lay off 23 employees, the second budget workshop the number decreased to 7 employees, now the City Manager wants to hire 2 more employees but lay off 7. She told the City Manager he must follow the process.

She said the City Manager should have came to the commission and asked to release the freeze to allow him to hire 2 people and give them a reason to hire the individuals.

She said the resolution to hire a Community and Economic Development Director did not have a reason to hire. She said what the City Manager did was in violation of what the commission said don't do. Now he is presenting another resolution to the commission to hire another individual.

She further said the seven employees that the City Manager is projecting to lay off should start from the top with the people that are making $100,000.00 and take away the deferred compensation, car allowances and maybe they will be able to save the seven people. She does not know why the first person the City Manager hired is still employed after the commission put a freeze on hiring. Maybe that position should be suspended until the process is done correctly.

Vice Mayor Taylor asked, will the two people be hired for this fiscal year?

Manager Patterson replied, yes.

Vice Mayor Taylor said that means by October 1ST they should be the first to be gone because they were the last hired.

Manager Patterson said, no. The two individuals he wants to hire do not have any roll back rights. He said Vice Mayor Taylor is talking about classified employees.

Vice Mayor Taylor said it does not matter they are being hired and that will be unfair to hire two and fire seven.

She further said if the City Manager wants to hire two employees then he must convince the commission to release the freeze.

She said she had the opportunity to look at the hiring package for the individual that was hired as Community and Economic Development Director and that person has a generous leave package and there are seven people in the process of being laid off.

She asked who are the seven people they are planning to lay off? She expects to have that information by the end of the meeting.

Manager Patterson said he don't a list of people that are expected to be laid off.

Vice Mayor Taylor asked Manager Patterson, what position where he planning to eliminate?

Manager Patterson said those people have roll back rights to other jobs. He don't want to get staff upset thinking they are going to be laid off until he has a chance to meet with the union and others that are involved.

Vice Mayor Taylor said they had a public meeting that was on live television, so everyone is on edge not knowing if they will be laid off and she suspect the City Manager must have some idea of what positions will be eliminated because the positions represent revenue.

She further said first the City Manager said twenty three people were going to be laid off, now the number had reduced to seven people.

Manager Patterson said that is correct, now the number is down to five and by the time they get it finalized it may be two or three people.

Vice Mayor Taylor said let's try getting the number down to zero and balance the budget even if that means everybody that makes over $ 90,000.00 has to cut a portion of their salary.

Manager Patterson said that is part of staff recommendations.

Commissioner Tydus said she did not receive a copy of the resolution that was adopted regarding the freeze on hiring so she don't have that as a point of reference. She said as she recall the resolution that was adopted was for non essential positions and she will not consider an Assistant to the City Manager and a Community Development Director as being non essential positions so she can't reprimand the City Manager on that issue. Her concern is that the City Manager provides the commission with the justification, not that it's entirely required because the two positions are not non essential positions and she is in support of the above mentioned resolution to hire an Assistant to the City Manager.

Commissioner Holmes said he doesn't believe in rumors but he knows what is behind the above mentioned resolution to hire an Assistant to the City Manager. He said someone approached him about the position but he refused to mention it to the City Manager. He would like to remove his motion so the resolution can die.

Vice Mayor Taylor suggested that the City Manager bring the resolution back to the commission properly.

She said the Community Development Director needs to be suspended until the process is done correctly.

Commissioner Johnson said she thinks the resolution needs to be pulled because she was the sponsor of the resolution to freeze all non essential hiring.

Mayor Kelley said he his happy to hear that the commission is focusing on the freeze because when he originally asked the commission to support the resolution it was because of the financial challenges of most city's that was occurring.

Commissioner Holmes removed his motion.

Mayor Kelley said the resolution to hire a Community Development Director was not approved by the commission but the person is still working so he would like something in writing as to why that person is still working.

16-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO IMPLEMENT AN AMNESTY PROGRAM THAT ALLOWS PROPERTY OWNERS WITH OUTSTANDING CODE ENFORECEMENT VIOLATIONS TO PAY A REDUCED AMOUNT AFTER MEETING CERTAIN ELIGIBILITY REQUIREMENTS;

PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Tydus said she is in favor of an amnesty program, but not this resolution because to her outstanding code violations represents responsibility on behalf of the citizens and business community, and it also represents revenue for the city. She said this resolution calls for eligible property owners to pay only 25% of the total fine or lien total as settlement for the outstanding fine or lien owned by the city. She will be in favor of a 25% reduction and the owner pay 75%.

Commissioner Tydus asked, have they received a list of code violations and violators because she does not know how many there are.

Manager Patterson said the amnesty program does not set a percentage on what the city can negotiate.

Commissioner Tydus said the second page of the resolution says eligible property owners will pay 25% of the total fine or lien as settlement for the outstanding fine or lien owed to the city.

She further said the memorandum that includes administrations justification of its recommendation states the financial impact as of today.

Commissioner Tydus asked if everyone adhered to the amnesty program the city would receive $100,000.00 oppose to $433,000.00?

Manager Patterson said that is correct.

Manager Patterson said the commission can change the percentage.

Commissioner Holmes said keep in mind as he previously stated, the state granted the city authority to have Code Enforcement to have citizens come into compliance and not to be a money making revenue for the city. The city can not balance the budget off the citizens of the community.

Commissioner Johnson agreed with Commissioner Tydus, the percentage is too low. She would not want to give the authority to the City Manager and she feels it needs to be the authority of the Special Master. She said she would be in support of a 25% reduction, not 25% of the total.

She asked will the sponsor of the resolution accept a friendly amendment?

Commissioner Holmes said he will pull his motion so the rest of the commission can make their amendments.

16-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO PURCHASE SEVEN (7) ADDITIONAL POLICE VEHICLES FROM FLORIDA SHERIFFS ASSOCIATION IN THE AMOUNT OF THIRTY THOUSAND DOLLARS ($30,000.00) PER VEHICLE, PAYABLE FROM ACCOUNT NUMBER 36-521648; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor said she is in favor for additional police vehicles but not at this time, maybe six months into the new budget because she wants to concentrate on hiring more police officers.

She further said the base cost of each car is $21,000.00 and the total cost is $29,000.00 per car for seven cars.

Manager Patterson said the cars will be fully equipped.

Vice Mayor Taylor said will the funds be coming from the police budget?

Manager Patterson said the funds will be coming from general funds.

Vice Mayor Taylor said if the funds will be coming from the general fund then use the money to help fill the deficit in the budget.

Manager Patterson said there are a total of seven cars he would like to purchase for the police department; two will be replacing cars that were destroyed.

Chief Cason informed the commission that they would like to purchase seven vehicles, two of them are replacement cars. She said in the next six months they may need additional cars because of the wear and tear on the vehicles.

Vice Mayor Taylor said she see a saving in fuel cost. She said perhaps the officers should take better care of the cars because of the wear and tear.

Chief Cason said she contemplated on suspending the take home cars program to save on the fuel, but that is in the PBA contract for the officers to have a take home car.

Commissioner Holmes said it has been said that the city has the money to purchase the cars for the police department. He said Chief Cason said they may need more than five or six cars because of the wear and tear on the cars. At times there are two officers in a car because some of them don't have a car to ride alone.

He reiterated that the Police Department really needs additional cars.

He continued by saying he would like to see the police department with more cars, but he also understands the city do not have the funds. The City of Opa-locka Police Department needs a SWAT unit, SWAT van, and a Crime Scene van.

He said if the city can stop spending unnecessary money throughout the year, then the police department can have what they need to get the job done. Money was used for youth jobs, roof repairs, over $100,000.00 was spent for special events and some of those things needs to be cut out.

Commissioner Johnson said the officer's needs to take better care of the vehicles, because she know for a fact since the eight years she has served on the commission the police department has purchased two sets of cars. She said she see parked cars at the police department. She understands that public safety is critical but she also understands that 85% of the general fund budget is for the police department.

She further said she would like to see the grant writers apply for grants so the city will be able to have what we need to have a productive police department. Her only reason for supporting the resolution at this time is that so the city will have enough vehicles. The cars need to be maintenance properly.

Mayor Kelley directed the City Manager to provide the commission with an update of the vehicle maintenance schedule, because there suppose to be something already in place.

He said he will support the resolution because the city can not offer salary comparison but the cars has an impact on the negotiation with the PBA.

Mayor Kelley further said he understands that the city will not be purchasing the cars at once, the payment is for five years.

Manager Patterson said there are some officers approaching their one year anniversary with the city and they will be offered a take home car, they have to honor that with the PBA contract.

He said the total amount for the vehicles will not be paid in full from this fiscal year budget.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

16-7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SUBMIT AN APPLICATION FOR FUNDS TO THE FLORIDA DEPARTMENT OF STATE, DIVISION OF HISTORICAL RESOURCES FOR FUNDING OF OPA-LOCKA

HISTORIC CITY HALL IN THE AMOUNT OF THREE HUNDRED FIFTY THOUSAND DOLLARS ($350,000.00), FURTHER AUTHORIZING MATCHING FUNDS FOR THE GRANT AWARD IN AN AMOUNT NOT TO EXCEED FIFTY THOUSAND DOLLARS ($50,000.00), PAYABLE FROM ACCOUNT NUMBER _____, IN ADDITION TO THE CITY PROVIDING IN-KIND SERVICES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson said she will bring back a resolution to suspend the City Manager for insubordination because she has asked for account numbers to be listed on documents involving money.

She further said if the city has a deficit, where will the money be coming from?

Manager Patterson said they do not put account numbers on grants because they have not received the money. When the city gets the grant then they list the account number.

Commissioner Johnson asked, what account number will the grant go into?

Vice Mayor Taylor said the matching funds for the grant is $50,000.0 which comes from the city, so what account will the funds be coming from?

Faye Douglas informed the commission that they don't usually provide account numbers for budget applications. If the city receives the grant then they will amend the budget to bring it into the budget.

Commissioner Holmes said if the $50,000.00 will come from the general fund, when the grant is awarded will the money go into the same account the $50,000.00 is coming from?

Ms. Douglas said all the expenses will come from one account once the account is set up.

Mayor Kelley said he don't want anyone to loose focus that they are trying to apply for a grant to improve Historic City Hall. He said what staff is saying is rather than have an account number with $50,000.00 in it that will show the line item, they don't do that until the grant is received because they will have to show both revenue and expense.

He further said it would have been helpful if that would have been explained because Commissioner Johnson has been stressing the importance of having account numbers on documents involving money. A memorandum should have been prepared saying although you have requested account numbers, there is none here for whatever reason.

Commissioner Johnson said she appreciates the clarification but to the City Manager this is not the first time the city applied for this grant. Previously she brought the team from

Miami-Dade County to work with the city, at that time the same matching money had an account number.

Commissioner Tydus asked Ms. Douglas if she would say that the establishing of the account number after receiving the grant is in keeping with general accounting procedures and practices?

Ms. Douglas said yes, the account number will say it was a budgeted item.

Mayor Kelley said if $50,000.00 is in a line item now, you would actually need the account for that money now.

Ms. Douglas replied, yes.

Mayor Kelley said if the city gets the grant then staff would have to come back to the commission to get authorization?

Ms. Douglas replied, yes.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Out of Room
Mayor Kelley	Yes

16-8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH PAUL T. SWEENEY FOR SPECIALIZED CONSULTING AND PROFESSIONAL SERVICES FROM JANUARY 1, 2010 THROUGH JUNE 30, 2010, AND JULY 1, 2010 THROUGH DECEMBER 31, 2010, IN AN AMOUNT NOT TO EXCEED SIXTY-TWO THOUSAND FIVE HUNDRED DOLLARS ($62,500.00), PAYABLE FROM ACCOUNT NO. 36-521312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

Mayor Kelley said Mr. Sweeney have done consulting for professional services for a while and he is trying to find out why someone has not been trained to provide the same services.

Manager Patterson said Mr. Sweeney has been applying for grants at the police department for several years, but he does not manage the grants. He writes the grants, but the grants are managed by the city's in house grant writer. Mr. Sweeney has already done some work for the first half of this year. This is 2 six month grants.

Mayor Kelley asked, does Mr. Sweeney salary come from the grant?

Mayor Kelley said this is Mr. Sweeney third year with the city and he is still on contract as oppose to hiring him because he is assuming the city's grant writer does not have the expertise to write the grants for the police department. By now the city should have someone in-house on payroll writing the grants.

Chief Cason informed the commission that Mr. Sweeney specializes in writing law enforcement grants and he has a relationship with the United States Department of Justice. Mr. Sweeney and Charmaine Parchment meet at the police department once a month. Mr. Sweeney research and write grants and the grants are managed by both Mr. Sweeney and Ms. Parchment.

She continued by saying the process has gotten easier because everything is done online.

Commissioner Johnson said in most grants the evaluator could be paid out of the grant, if not 100%; is there anyway where this individual, because of his expertise, along with the joint effort with Ms. Parchment can be paid from the grants?

Ms. Parchment said they are looking at doing an overhead cost that will be attached to the grant to cover some of the cost associated with doing the grants.

Commissioner Johnson said the above mentioned resolution is going backwards. She said she remember sponsoring a resolution that all contracts are for a period of one year. This seems to be something that happened in the past and now staff is trying to compensate Mr. Sweeney.

Manager Patterson said the services are 2 six month contracts.

Commissioner Johnson asked Manager Patterson if he looked at the previous contract.

Manager Patterson said yes, it was a six month contract.

Commissioner Johnson directed the City Clerk to provide her with the previous contract for Mr. Sweeney.

Commissioner Johnson asked Chief Cason if Mr. Sweeney was on a contract?

Chief Cason replied, yes.

Mayor Kelley said the way the resolution is written it looks like they are ratifying what has been done and his question is why are they ratifying it.

He further said if Mr. Sweeney already had a contract from 2007, 2008, 2009, and now 2010 why are they getting it in a ratified format?

Mayor Kelley asked, has Mr. Sweeny been writing grants and researching for the city since January?

Manager Patterson replied, yes.

Mayor Kelley asked, has he been paid?

Manager Patterson replied, no.

So Mr. Sweeney has been working without being compensated and its just coming before the commission, said Mayor Kelley.

Manager Patterson said that is correct.

Mayor Kelley asked, why is this just occurring?

Manager Patterson said it has been changes in administration. We have a new chief of police and it was brought to her attention.

Mayor Kelley said the document says January 1ST - June 30TH, today is July 28, 2010.

He asked, if the city is paying this amount of money over the course of a year, why can't the city get a grant writer cheaper so they can be paid out of the grant?

Mayor Kelley said this should have went out to see what the market would bear, if it turns out it was feasible to do it this way then that's fine, but he thinks you can get a full time grant writer who can write police/public safety grants or put it under Ms. Parchment for the responsibility to write grants for the entire city.

He further mentioned that he does not think they are getting the maximization of what they can get. It's nothing against Mr. Sweeney but he's required to work 20 hours per week during the contract period.

Deputy Chief Adam Burton informed the commission that Mr. Sweeney is not receiving the full $31,000.00 for six month period. He works on an hourly basis and their research shows that he never goes to the maximum, he only gets paid as he works. The contract is only to enable them to pay him not to exceed $31,000.00 for the six month period.

Commissioner Johnson said the resolution says Mr. Sweeney gets paid $65.00 per hour and a minimum of 20 hours.

Commissioner Johnson asked, has Mr. Sweeney been paid?

Dr. Ezekiel Orji said no.

Commissioner Johnson said you have invoices that are back dated from January 2010 to July 2010?

Dr. Orji said that is correct. The finance departments do not have invoices in their possession, but since the commission has not approved payment they are unable to pay Mr. Sweeney.

Commissioner Johnson asked Dr. Orji, when does the previous contract expire?

Dr. Orji said the contract expired December 2009.

Commissioner Johnson said the City Manager needs to look into training someone to perform these duties.

We have someone that came in as a grant writer, we have Gregory Harris that was hired as a grant writer and now he works in public works.

She further said Gregory Harris was hired to be the grant writer for the city and now he's working in the public works department, she doesn't know when the current grant writer was hired.

Commissioner Johnson said she wants to know how Mr. Harris was transferred from being the grant writer and now there's a new grant writer.

Commissioner Holmes said Mr. Harris was transferred to the public works department because he was not qualified to be a grant writer.

Commissioner Holmes asked, how much money did Mr. Sweeney receive for the police department within the last year?

Deputy Chief Burton said about Three Million Dollars.

Vice Mayor Taylor asked, how much money did Mr. Sweeney bring in for the police department?

Deputy Chief Burton said $300,000.00 for the year of 2010 and he does not have the total amount with him.

Vice Mayor Taylor asked, who write the grants, because when she looked at Mr. Sweeney scope of work it does not say he writes the grants. In the resolution it says Mr. Sweeney reviews the grants, proposals, funding of opportunities and department needs. No where does it say he writes grants.

Vice Mayor Taylor asked, if Mr. Sweeney writes grants for the police department, why is the grant writer helping him?

She continued by saying if Mr. Sweeney received over One Million Dollars in grants, why hasn't he been written into those grants?

Deputy Chief Burton said he feels Mr. Sweeney is worth it because of the money he has brought in.

He further said Mr. Sweeney finds the grants and writes them. Once the grants are awarded he turns them over to Ms. Parchment to manage them and they work together as far as the management, rules, and reporting.

Dr. Orji said when the contract is approved, then they will have basis to pay him.

Mayor Kelley said he appreciated Dr. Chief Burton support of Mr. Sweeney, but some of the grants he is writing the commission has already had a hand in so he will get a favorable opinion. The commission has traveled to Washington, DC and Tallahassee, FL regarding these grants.

Commissioner Johnson said Mr. Sweeney scope of services needs to be incorporated in his contract.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

16-9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE AMENDMENT NUMBER 1 TO THE AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND AMERICAN TRAFFIC SOLUTIONS (ATS) FOR TRAFFIC SAFETY CAMERA PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.A.*

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor said by law the citizens have to be notified regarding the cameras, has this process started yet?

Attorney Geller said the vendor will start that process after the agreement has been passed.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

16-10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO NEGOTIATE

AND REMOVE CODE ENFORCEMENT LIENS, IN WHOLE OR IN PART; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked said this resolution looks similar to another resolution that was brought before the commission.

Attorney Geller said Commissioner Holmes originally asked that this authority be granted to the City Manager, subsequently there was a discussion about an amnesty program. If the resolution for the amnesty program would have passed then this resolution would be supercilious.

Commissioner Johnson said the resolution for the amnesty program also gave authority to the City Manager.

Attorney Geller said yes it was and he does not know if the commission wants to treat the above resolution the same.

Vice Mayor Taylor said she like the fact that the violations will be negotiated but she does not want the City Manager to have that authority, she would like for the Special Masters to have that authority.

Commissioner Holmes said the reason he sponsored this resolution is because he deal with a lot of citizens regarding liens on their property. When people go before the Special Master it's because Code Enforcement takes them so they can come into compliance or fine the person.

He further said if a citizen receives a citation and they have not gone before the Special Master, has no liens, and has came into compliance the City Manager will be the appropriate person to sign off that the citizen is in compliance.

Mayor Kelley said the resolution says liens, and liens automatically go before the Special Master.

He further said he can support giving the City Manager authority to negotiate and remove citations because he would assume liens are a lot more.

Attorney Geller said not necessary, some of the liens are small.

Commissioner Holmes made a motion, seconded by Mayor Kelley to amend the above resolution to read citation instead of liens.

Commissioner Johnson asked, what does charter say in reference to this?

Attorney Geller said the charter provides for Code Enforcement process, whereby liens are imposed by the Special Master. Citations are issued by the Code Enforcement Department according to the city's code. It is in the City Manager's authority since Code Enforcement works for him until it goes to the Special Master.

He said the city do have a code and the question is to whether or not the City Manager would be authorized to allow the citation to expire once the code has gone into place. Once a citation becomes a lien it is more problematic.

Commissioner Johnson asked, do the code states that people are suppose to go before the Nuisance Abatement Board?

Attorney Geller said only if they are charged with a nuisance issue, not for every code violation. The Nuisance Abatement Board was implemented to handle certain matters that staff determines is a nuisance.

He further said he think it will be well taken to pass this resolution to clarify that the City Manager has the authority over things that have not yet gone before the Special Master and become a lien, because it is not clear at this time.

Vice Mayor Taylor asked, if a person receives a citation they would then go before the Special Master?

Attorney Geller replied, no.

He further said a citizen should receive a warning first and if they have not come into compliance, they will then receive a citation that can be paid or appealed to the Special Master.

Commissioner Holmes re-iterated if a citizen receives a citation and come into compliance, then the City Manager can sign off that the citizen is in compliance.

Mayor Kelley said he will support to amend resolution to read citations because he know there has been situations where it appears the city has been very aggressive in getting to the lien process when he think the citation could have been dealt with before it got that far.

Attorney Geller said for the record, the amendment will change the word liens to citations in the title, second whereas clause, and in section 2 of the above resolution.

There being no further discussion, the amendment passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

13-1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ACCEPT LAWRENCE WRIGHT & PARTNERS, LLC FOR THE CONSTRUCTION MANAGEMENT SERVICES FOR SHERBONDY VILLAGE COMMUNITY CENTER, AND TO FURTHER AUTHORIZE THE CITY MANAGER TO NEGOTIATE A PRICE AND A CONTRACT ACCEPTABLE TO THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AND EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Out of Room
Commissioner Tydus	Yes
Mayor Kelley	Yes

13-2. A RESOLUTION OF THE CITY OF OPA-LOCKA, OF MIAMI-DADE COUNTY, FLORIDA, SETTING THE PROPOSED MILLAGE RATE OF 9.1052 OF AS VALOREM TAXES FOR THE CITY OF OPA-LOCKA, FLORIDA, FOR THE BUDGET FOR FISCAL YEAR 2010-2011; ESTABLISHING THE DATE, TIME AND PLACE FOR THE FIRST AND FINAL PUBLIC HEARINGS TO CONSIDER THE PROPOSED MILLAGE RATE AND TENTATIVE BUDGET FOR FISCAL YEAR 2010-2011; AND DIRECTING THE CITY MANAGER TO FORWARD A COPY OF THIS RESOLUTION TO THE MIAMI-DADE COUNTY PROPERTY APPRAISER BEFORE DUE DATE OF AUGUST 4, 2010; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE . *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Out of Room
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN AMENDMENT TO ORDINANCE 07-19 TO CREATE SECTION II FOR A BAN ON WEARING SAGGY PANTS APPAREL IN CITY BUILDINGS AND PARKS WHICH SHALL ALSO EXTEND TO ALL PLACES OF BUSINESS WITHIN THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFETIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

Mayor Kelley said he would like for people to be notified so everyone will be aware.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Out of Room
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 21, ARTICLE 11, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" BY AMENDING PROVISIONS RELATED TO WATER AND SEWER RATES FOR FISCAL YEAR 2010-2011 AND SETTING UP WATER

AND SEWER RATES FOR FISCAL YEARS 2011-2012 AND 2012-2013; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION AND SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on July 14, 2010) *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller. Mayor Kelley opened the floor for a public hearing.

John Riley of 2963 NW 135TH Street, Opa-locka, Florida, appeared before the City Commission and asked, how will the public know about the water rates if they don't have any copies of the proposed water rates to participate in the public hearing?

Commissioner Holmes said the water rates will be going out in the water bills.

Mr. Riley said this is public hearing, and the commission is proposing to change the water rates for through 2013, but the public has no idea what the rates are.

Commissioner Holmes said the commission does not know the reduction yet, but the citizens should be aware that the commission has this item on the agenda.

Mr. Riley said he is in favor of what the commission is doing, but he would like to know what the rates will be.

Andrew Burnham of Burton & Associates, 200 Business Park Circle, Ste. 101, St. Augustine, Florida appeared before the City Commission and said his firm was retained by the City of Opa-locka in 2007 to look at the Water & Sewer utility system and rates. During 2003-2007 there were rate adjustments, during that situation cross pressure emerged from the system from Miami-Dade County in terms of increase cost of water supply and waste water treatment. In 2007 the city hired his company to perform a utility rate study that developed a multi year financial management plan. He is here to look at the rate structure in terms of making modifications to provide additional incentives for water conservation and also maintain affordability for lower volume users. In 2009 they provided additional services to look at tweaks to the rate structure, based on customer and commission comments and concerns.

He further said in 2007 the study concluded without any rate adjustments the enterprise fund would return to a financial emergency and that the existing rates could not satisfy the cost requirements at that time. Their recommendations at that time was for the city to adopt a plan of annual rate revenue adjustments and increases that provided for the sustainability of the enterprise fund, funded needed systems repairs and improvements, maintain the level of service, and minimize the operating expenses by the water distribution system so the city would not have to purchase as much water from Miami-Dade County; as well as a aggressive sewer collection system and man hole replacement.

Mr. Burnham further briefed the commission on the water rate changes in 2007.

He further said the city retained his company in 2009 to look at concerns on the rate structure that was adopted. Providing additional affordability for lower volume users, re-visiting the cost allocation between the commercial and residential classes, and evaluate the impacts of reclining blocks which were having unanticipated impacts to larger families. As a result of that analysis, they increased the amount of consumption in the lower tiers so it will benefit multi family accounts, and they also updated the cost allocation between residential and commercial based upon updated flow information.

The commission adopted those rates for 2010 reflecting those revisions and it's also important to know that those rates also embodied a reduction to that approved increase.

In 2010 in recognition of the economic conditions that people are running into and to maintain affordability, the commission is making the decision to defer some of the capital improvements to lower the rates to 7% for water instead of 14% and 12% on sewer instead of 24%.

He said he strongly recommends updating financial analysis for 2011.

He said this new rate structure will benefit everyone, and also the City of Opa-locka has the second lowest rates in the area.

The City Commission is doing a lot to maintain affordability for the low volume and average users with the rate structure tweaks, but they are tweaked out. There are not many more adjustments they can make relative to maintaining affordability without compromising the long term sustainability of the enterprise fund.

Commissioner Holmes directed the City Manager to have the new rate structure on the city's local cable channel and advertise it in the newspaper so the citizens will see that the commission voted to reduce their water bill.

Commissioner Holmes and Mayor Kelley thanked Mr. Burn for his presentation.

Commissioner Johnson said although they are looking at the deduction now, in the years to come its going to be a time that the commission has to force an increase and it's going to be hard on the citizens.

She asked, are there any cities looking at the windmill process to generate water or energy?

Mr. Burnham said not for water and sewer utilities.

Mayor Kelley said he asked the City Manager to look at how the city can best utilize the old water plant to recapture and reduce some of the challenges of what the city is impacting.

Mr. Riley said the information was helpful; however some people that do not live in Opa-locka are still serviced for water by the city.

He further said for the last twelve years no one has been able to say what happened to the city's well permit.

There being no additional persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

16. ADMINISTRATION:

CONSENT AGENDA:

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE RESOLUTION TO AUTHORIZE THE CITY MANAGER TO PROVIDE PAYMENT TO BURTON AND ASSOCIATES IN THE AMOUNT OF THIRTEEN THOUSAND SIX HUNDRED DOLLARS ($13,600.00) FOR PROFESSIONAL CONSULTING SERVICES, PAYABLE FROM ACCOUNT NO 17-513340; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO RATIFY THE CITY MANAGER'S DECISION TO PURCHASE FROM OFFICE EXPRESS SUPPLY, FILING CABINETS NECESSARY TO MEET FLORIDA DEPARTMENT OF LAW ENFORCEMENT (FDLE) RECORDKEEPING CRITERIA, IN THE AMOUNT OF SEVENTEEN THOUSAND ONE HUNDRED EIGHTY NINE DOLLARS AND SEVENTY-EIGHT CENTS ($17,189.78), PAYABLE FROM ACCOUNT NUMBER 36-521642; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA–LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SUBMIT AN APPLICATION FOR THE TIGER II DISCRETIONARY GRANT PROGRAM TO THE UNITED STATES DEPARTMENT OF TRANSPORTATION (US. DOT) REQUESTING FUNDS IN AN AMOUNT UP TO TEN MILLION DOLLARS ($10,000,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass items 16-4, 16-5, 16-6 of the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Commissioner Holmes said one the residents called him regarding the demise of her son. Poitier Funeral Home will be provided the funeral services; however the mother is lack of funds and is in need of $1,100.00 to complete the funeral arrangements. He asked if anyone is able to assist the family with the funeral services to get in contact with him.

Manager Patterson informed the Commission that he received a report from the State of Florida regarding utilizing the parking lot at the Department of Children. They would like the city to pay them and give them a Hold Harmless Agreement for any damages and liability. The State is asking that the city pay Ten Dollars per parking space per month, payable in advance, which will cost $1,040.00 per year to utilize nine parking spaces.

Commissioner Holmes directed the City Attorney to contact Tallahassee and inform them that the City of Opa-locka will be taking our land back. The city gave the State authority to build that building on the city land, now they want to treat the city this way.

Manager Patterson said the City of Opa-locka Community Empowerment Team (CET) along with the City of Miami Gardens, Youth Violence Prevention, and the Children's Trust is holding a Neighborhood Crime Watch Summit on Tuesday, August 17, 2010 at 9:00 a.m. – 3:00 p.m. at 780 Fisherman Street, 2ND Floor.

He further said he made contact with Miami-Dade County regarding the city's recycling services and he was assured that they will not have problems with their trucks as they have had in the past.

He further mentioned that Miami-Dade County has been asked to spray the city to try to eliminate the mosquito problems and the work was completed on July 19, 2010.

He continued by saying he sent Commissioner Holmes all the safety concerns regarding preserving the manatees at the Ingram Park Lake. All the documents from Miami-Dade County and the State of Florida say not to allow any motorized vehicles in that lake.

He understands the budget hearings are scheduled for September 8TH and September 15TH. He said that is a short turn around time.

Starex Smith, Parks & Recreation Director informed the commission that the City of Opa-locka and Miami Gardens will be working on a grant, and they are required to do a public presentation. The grant is through the Florida Department of Education and it's a mentoring program. They are asking for $100,000.00 for the City of Opa-locka to partner with the City of Miami Gardens. He said they felt that a collaborative effort between the two cities would make the proposal stronger. They are requesting for the dollars to be used in the parks department to expand the C.O.O.L. Kids program to have the program on the east and west side of the city.

Commissioner Johnson asked, has the city received any reimbursement money from OCED for Segal Park?

Manager Patterson replied, no.

Commissioner Johnson said when the money comes in she would like for the commission to receive a report with the amount, not including the $650,000.00.

She further said it was mentioned in the budget workshop that the Finance Director and City Manager salary comes from the Enterprise Fund. She asked who else gets paid from the Enterprise Fund?

Manager Patterson said the people that are paid from the Enterprise Fund are those that work full time in that Enterprise Fund. He said Personnel Staff, Payroll Staff just to name a few.

Commissioner Johnson asked, is it various positions?

Manager Patterson replied, yes.

Commissioner Johnson said when you look at the adopted budget those positions are listed with a dollar amount and she is very concerned.

She further mentioned that she received CPR training and learned that most cities should have an AED machine in case someone has a heart attack. Where is the city's machine located?

Guithele Ruiz-Nicolas, Human Resources Director informed the commission that the city does have an AED machine and it is located in the Human Resources Department. The IT Director is in the process of working with the police department to get additional machines in the Parks & Recreation Department and Public Works.

Commissioner Johnson asked, who is trained to operate the machines?

Mrs. Ruiz-Nicolas said 23 people have been trained to operate the machines.

Commissioner Johnson said she would like to give a word of caution as a grantee of DOE that we may say it needs to be a public hearing, most times they call around to ask what

newspaper it was published in and how it was publicized so be cautious about public notices.

Commissioner Holmes said he received good comments regarding the Urban Rangers and Code Enforcement Officers that works on the weekend catching people doing illegal dumping. In addition, he received positive reports that Road Runner is doing a good job in keeping the city problems well manicured. He was advised that the city will be cutting the grass owned by CSX and he believes the City Manager said Road Runner would take on that job to make the rail road tracks look better. He further said he would like other men in the community to know that there may be an employment opportunity if the city has the opportunity of doing the service for CSX.

He further said he would like to know for a fact that there are manatees in the Ingram Park Lake.

Vice Mayor Taylor asked the City Manager if he received anything from CSX?

Manager Patterson said he has a copy of the contract and he will be reviewing it with the City Attorney.

Attorney Geller said for the record the time is 11:15 p.m. and a train just passed by with a loud whistle.

Vice Mayor Taylor asked, when is the next budget workshop?

Mayor Kelley said he wanted to get possible dates from the commission for a Budget TownHall Meeting for the citizens.

Commissioner Tydus said several years ago the City Commission adopted legislation requiring homeowners and businesses to paint their homes and businesses on a scheduled basis. She asked for a report of citations and compliances including address and dates since the adoption of that legislation.

Commissioner Johnson said when the legislation was passed Mr. Starex Smith worked with businesses giving them paint. One of the many legislations the commission approved and nothing is being enforced.

Mayor Kelley asked, what is the status on the how to do business in the city brochure?

Manager Patterson said the brochure has been completed.

Mayor Kelley mentioned that he saw the report regarding the challenges at apartment buildings and he is happy to hear the phases the police department is implementing because it is needed.

Mayor Kelley further said an incident occurred when a child fell through the railings at an apartment complex. He asked the City Manager to do a check to make sure those discrepancies were addressed, and asked has that been completed?

Manager Patterson said the building guard rail has been repaired.

Mayor Kelley said he asked the City Manager to have staff go to all the apartment complexes located within the city to check for those problems.

Mayor Kelley asked the City Manager how much time he needs to make revisions based on the previous Budget Workshop? He said he would like to have a Town Hall Meeting for the public to know what is being proposed to hear their input.

Manager Patterson said he should have everything together within the next two days.

Mayor Kelley stated that the FRP's were received for Financial Auditing Services and he would like to get input from his colleagues on how they would like to evaluate the process.

Vice Mayor Taylor asked, when does the auditor have to be selected?

Mayor Kelley said he would like to have an auditor before October.

Mayor Kelley said he would like the City Clerk to schedule the evaluation process on September 8TH prior to the meeting.

B. ACCOUNTS PAYABLE:

Dr. Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed the Commission of the finance reports provided to them as a part of the packet from the City Manager's Office.

He said he is happy to announce that the city finances are in line with the budget as amended. The city is supposed to be at 75% of revenue projections and we are at 76% and 75% for expenditures.

Dr. Orji said as indicated in the report the total cash balance for the city is $14.8 Million Dollars at Bank Atlantic, $5.4 Million of that total is for governmental funds and $9.3 Million is in the enterprise funds.

He said all the bills are being paid as they are approved and he advised that the city has continued to maintain the reserve requirements of the city which is $565,000.00.

Commissioner Johnson requested a monthly report on the city's investments.

Mayor Kelley asked Dr. Orji to clarify that the city at this moment is not in a deficit.

Dr. Orji said that is correct.

Mayor Kelley said there has been conversation regarding a deficit because of what has been proposed between the city's revenue, what is expected in the expenditures based on what was requested for the upcoming budget.

17. OFFICIAL BOARD REPORTS:

John Riley of 2963 NW 135TH Street, Opa-locka, Florida appeared before the city commission to extend a personal request to Commissioner Tydus to make an appointment to the Charter Review Board.

He further said per the ordinance in the code, the Housing Authority is given authority over apartment buildings and there's been various situations within the city pertaining to apartments that they have no knowledge of or an invitation about the Housing Authority Board. He is concerned about that because the board needs to carry out their duties.

As it relates to the Personnel Board they have a member that's having family problems and has only attended one meeting within nine months, therefore that member has concluded that they will not be able to continue serving on the board. He asked the Commission to consider a replacement for Dr. Allen.

He said under section 162 the city should have a Code Enforcement Board. That board will be able to take issues from the Special Master. If the Special Master is doing something wrong people will have the opportunity to petition the board to solve the problem. In addition to that, citations were set by ordinance and it should have been amended by an ordinance. You can not change anything in an ordinance by a resolution.

He continued by saying another thing the Special Master does not pay attention to is that you can not force a lien on homestead. Florida has a homestead exemption; this is the only state in the country that you can not do anything to a homestead.

Mayor Kelley directed the City Attorney to provide the commission with a report about Mr. Riley concerns regarding ordinance versus resolution.

18. CITY ATTORNEY'S REPORT:

Attorney Geller informed said Vice Mayor Taylor requested a litigation report and he distributed the report to the commission and there is not much except for the two Flea Market cases which he is trying to get them in mediation.

He further said there was a matter pending that was before the Public Employees Relations Commission, where ASCFME was seeking through a petition that they filed to become the bargaining agent for supervisory personnel in the police department above the rank of captain and major which contradict the statues. He said the petition has been withdrawn.

He has a tentative proposal from the PBA, they were not able to complete it in time to have it before the commission. It will be distributed in advance for any questions.

He said that he was pleased that the Red Light Camera legislation was passed by the commission. They must have thirty days of warnings and he will contact them to have it in effect right of way. It has significant safety benefits, as well as being a potential source of revenue.

He was unable to complete revisions to the schools ordinance for tonight, but he will have it finalized.

As it relates to CSX there is a contract that deals with maintenance. There are other issues the city has with them regarding the whistle blowing. He will try to get the issues resolved.

The agreement between Mr. Sweeney and the city will be amended to specify for the six month term exactly what his duties are.

He advised the commission that he will be on a planned vacation the last week of August, and if there are any items for the September 8TH meeting he requested them to be in advance. The budget hearing and Commission meeting will be held on September 8TH which is Rosh Hashanah, Jewish Holiday and he nor Mr. Kramer will be able to be in attendance, he has arranged for Mr. Michael Rodriguez to be in attendance.

Commissioner Johnson said when Attorney Geller get into the agreement she want him to look at it because she is looking at the previous agreement. The agreement has two or three different dates and it also says the payment should be rendered 15 days at the end of each pay period.

She further directed the City Attorney to work with the City Manager because she wants to make sure the city is getting what they agreed upon for the scope of service.

Commissioner Johnson requested a resolution for employees that may have a conflict of interest in working on a project and they don't put it on the record. She said whenever the commission has a conflict of interest they put it on the record.

She further said a few months ago she felt she was put on the railroad track on issues being put under the scope of not having ethic and it went as far as Help Me Howard.

Commissioner Johnson read the conclusion from the ethics department for the record.

Attorney Geller said the letter is from the Commission on Ethics dated July 19TH regarding matter number K10-038 and it read as follows: We have concluded our inquiry into this matter and have closed the case. A copy of our report of investigation is enclosed. Attorney Geller read the conclusion that the Commission on Ethics found into the record. It reads as follows: I have reviewed the investigation; I have determined that there is insufficient evidence to prove a violation of section 2-11.1G of the Miami Dade Code of Conduct and Conflict of Interest Ordinance. If additional information is developed then the investigation may be re-opened.

waste water, storm water, or drinking water infrastructure projects as specified in the language of the appropriation. Each year Congress includes a list of special needs water related projects in our budget, which we refer to as a special appropriation of projects. These funds may be used to finance a potential five percent of the projects total and require a local cost share forty five. At EPA headquarters has delegated the award administrated for these projects from the region offices. EPA region four will be handling your grant.

He said he wanted to read the letter because as you talk about the challenge of water and decreasing the utility bill, and what will be done with the property of the old water plant. Hopefully, with the grant it will be useful in identifying because it is an opportunity to deal with an area that has been of great concern to him.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 12:01 a.m.

MAYOR

ATTEST:

CITY CLERK